

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

March 25, 2024

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda). Mr. Segrave moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

Mayor Collins noted for the record that Mr. Laybourn joined the meeting at 6:01 p.m.

[CA] Minutes from Regular Meeting of the Governing Body on March 11, 2024. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for restaurant liquor license application filed with the City Clerk’s Office for Rebecca Andrew Ventures, Inc. d/b/a Mr. Jim’s Pizza, 4001 Laramie St., Unit A, Cheyenne, WY. There being no comment or input and purpose of the hearing having been met, Mayor Collins closed the hearing and referred the applications to Finance Committee.

ORDINANCE –3rd READING – Amending Section 10.12.160, Authority to Impound Illegally Parked Vehicles, and Section 10.12.170, Immobilization, of Chapter 10.12, Administration and Enforcement, of Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming, modifying specified enforcement provisions regarding vehicle impoundment. Reporting for Public Services, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following member of the governing body: Dr. Aldrich. (#4555)

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MR Medium-Density Residential to NR-2 Neighborhood Residential – Medium Density for land located south of West 5th Street between Patton Avenue and Snyder Avenue. Mr. Roybal moved to approve second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following member of the governing body: Dr. Aldrich.

ORDINANCE –2nd READING – Annexing to the City of Cheyenne, Wyoming, land located southwest of the I-25 and I-80 Interchange adjacent to Roundtop Rd. Mr. Roybal moved to approve second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of AG Agricultural, LR Low-Density Residential, MR Medium-Density Residential, HI Heavy Industrial, and CB Community Business for land annexed to the City of Cheyenne located southwest of the I-25 and I-80 Interchange adjacent to Roundtop Road. Mr. Roybal moved to approve second reading, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following member of the governing body: Dr. Rinne.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification of AG Agricultural, LR Low-Density Residential, MR Medium-Density Residential, HI Heavy Industrial, and CB Community Business to AG Agricultural and LI Light Industrial for land located southwest of the I-25 and I-80 Interchange adjacent to Roundtop Rd. Mr. Roybal moved to approve second reading, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body.

RESOLUTION – Re-appropriating the Fiscal Year 2024 Budget of the City of Cheyenne according to the provisions of W.S. §§ 16-4-112 & 16-4-113. Reporting for Finance Committee Dr. Aldrich moved to adopt, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. (#6394)

[CA] RESOLUTION – Authorizing the Mayor to execute an amendment to the Development Agreement between the Board of County Commissioners of Laramie County, Wyoming, the City of Cheyenne, and COLL-IND, LLC regarding the Niobrara Energy Park. Motion (per Consent Agenda) carried. (#6395)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for North Row, City of Cheyenne, Laramie County, Wyoming (located at 4612 Van Buren Ave). Mr. Roybal moved to adopt with Planning Commissions recommended conditions prior to recording that a) add utility easements and b) add block number to the plat, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#6396)

RESOLUTION – Requesting that the Wyoming State Legislature consider legislation authorizing the sale of alcoholic beverages with an alcohol by volume of 5% at grocery stores and convenience stores throughout the state. Dr. Aldrich moved to adopt, seconded by Mr. Johnson. Motion failed. Voting “yes” – Mr. Cook, Mr. Esquibel, Mr. Johnson, and Dr. Rinne. Voting “no” – Dr. Aldrich, Mr. Laybourn, Mr. Roybal, Mr. Segrave and Mr. White. Public comment was made by: Mike Moser, executive director of the Wyoming State Liquor Association. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Esquibel, Mr. Segrave, Mr. White.

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Cheyenne Terrace, 2nd Filing, City of Cheyenne, Laramie County, Wyoming (located east of Converse Avenue and south of Storey Boulevard). – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Requiring the study and submittal of a report to the Governing Body analyzing the best avenue for correcting deficiencies and improving and maintaining the west entryway to the Municipal Building to enhance public perception and experience. – referred to Public Services Committee. (Sponsors – Mr. Esquibel, Mr. Laybourn, Mr. Roybal and Mr. Segrave)

[CA] Memorandum of Understanding between the City of Cheyenne, Cheyenne Police Department, Memorial Hospital of Laramie County d/b/a Cheyenne Regional Medical Center, Volunteers of America, Healthworks, Community Action of Laramie County, Wyoming Department of Corrections, Laramie County Sheriff's Office, District Attorney, Drug Court and Treatment Court Programs, Laramie County and the Office of the State Public Defender for the Laramie County Law Enforcement Assisted Diversion (LEAD) Program Policy Coordinating Group. Motion (per consent agenda) carried. (#7942)

[CA] Professional Services Agreement between the City of Cheyenne and Atmos Technologies for a supply of alternative daily cover foam for the City of Cheyenne Happy Jack Landfill (Solid Waste Fund) – referred to Finance Committee.

[CA] Grant Agreement for Wyoming Outdoor Recreation grant funds between the City of Cheyenne and State of Wyoming, Department of State Parks and Cultural Resources, Division of State Parks, Historic Sites and Trails for the Belvoir Ranch Trail (Belvoir Ranch Recreation Fund and Wyoming Outdoor Recreation Grant) – referred to Finance Committee

[CA] Contract Modification #2 to Contract #7531 between the City of Cheyenne and Waste Management of Colorado, Inc. for recycling services through April 15, 2025 (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-11-24 for six (6) trucks for the City of Cheyenne (mid-size, 1 ton, cab & chassis) (2019-2022 Optional 1% Sales Tax Fund, 2021 Specific Purpose Option Tax Fund, and Weed & Pest Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-13-24 for three (3) motorcycles for the City of Cheyenne Police Department (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-8-24 for an agreement between the City of Cheyenne and JTL Group Inc. d/b/a Knife River, for the Powderhouse & Carlson Intersection Signal Project. (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Request to extend the time period in which The Blue Stem Wine House LLC has to become operational for an additional year for their winery license located at 1909 Warren Ave., Cheyenne, WY – referred to Finance Committee.

Announcement was made of the Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the June 6, 2024 Wyoming Association of Municipalities Summer Convention Business Meeting to be held in Pinedale, Wyoming. Dr. Aldrich moved to designate Dr. Rinne as the Official Voting Delegate and Mayor Collins as the Alternative Voting Delegate, seconded by Mr. Roybal. Motion Approved. Voting “yes” – all members of the governing body.

No comments were made on the Voucher Report as presented.

No comment was made on the Revenue Report as presented.

Announcement was made of a Public Hearing to be held April 8, 2024 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for a retail liquor license transfer of location application filed with the City Clerk’s Office for Scooters Scoreboard LLC d/b/a Scooter’s Scoreboard Bar, from 507 E. Lincolnway to 619 E. Lincolnway, Cheyenne, WY.

Announcement was made of a Public Hearing to be held April 8, 2024 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for a retail liquor license transfer of ownership application filed with the City Clerk’s Office for Wyoming Pipe Dreams, Inc. d/b/a The Lamp Lounge & Drive Through Package Liquor Store, 101 W. 6th St., Cheyenne, WY (license currently held by W.W. Enterprises, Inc. d/b/a The Lamp Lounge & Drive Through Package Liquor Store).

Announcement was made of a Public Hearing to be held April 8, 2024 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statue §15-1-402 exist for High Plains Road beginning at South Greeley Highway and terminating at Division Avenue.

Announcement was made of a Public Hearing to be held April 8, 2024 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statue §15-1-402 exist for about 7.3 acres of land and the Laramie Street right-of-way located between Saratoga St. and Whitney Road.

Announcement was made of a Public Hearing to be held April 8, 2024 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statue §15-1-402 exist for about 1.60 acres of land located northeast of the intersection of Dell Range Blvd. and Griffith Ave.

Announcement was made that a Calcutta benefitting the Wyoming Breast Cancer Initiative will be held on April 26 – April 28, 2024 at Peppermill Bar, 1618 Stillwater Ave., Cheyenne, WY (10% of proceeds go to charity).

The following members of the governing body made comments under other business: Dr. Aldrich, Mr. Johnson, Mr. Laybourn, and Mr. Segrave.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:35 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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